

1. BIJOU WOODS ASSOCIATES LP v. SHOP 1611, LLC, 25CV1938**(A) Plaintiff's Motion to Compel Response to Form Interrogatories (Set One)****(B) Plaintiff's Motion to Compel Response to Special Interrogatories (Set One)****(C) Plaintiff's Motion to Compel Response to Request for Production (Set Two)**

On May 22, 2026, plaintiff Bijou Woods Associates LP ("plaintiff") filed separate motions to compel defendant Shop 1611, LLC's ("defendant") verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production (Set Two), respectively.

On July 20, 2026, defendant filed timely oppositions. Defense counsel declares he served defendant's verified responses to each of the three discovery requests. Counsel's declaration also explains that the failure to submit timely responses was solely attributable to him, as his family underwent an extraordinary family medical crisis.

On July 24, 2026, plaintiff filed timely reply briefs. While the motions to compel responses are moot, plaintiff maintains its requests for monetary sanctions.

Having reviewed and considered defense counsel's declaration, the court finds that imposition of a monetary sanction under these circumstances would be unjust. (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories], 2031.310, subd. (h) [request for production].) Therefore, plaintiff's motions are each denied in their entirety.

TENTATIVE RULING # 1: PLAINTIFF'S MOTIONS TO COMPEL ARE EACH DENIED IN THEIR ENTIRETY. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.